

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wade Carper	Team: Team # 5	CCRB Case #: 200305134	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 06/25/2003 11:00 PM	Location of Incident: corner of § 87(2)(b) and § 87(2)(b)	Precinct: 79	18 Mo. SOL 12/25/2004	EO SOL 12/25/2004	
Date/Time CV Reported Wed, 07/02/2003 7:41 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/08/2003 2:21 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Norman Grandstaff	24629	922445	079 PCT
2. POM Thomas Stevens	11092	902437	079 PCT
3. Officers			
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Carl Quick	13051	899733	079 PCT
2. SGT Joseph Lyons	02908	906678	079 PCT
3. POM Michael Knott	06511	901785	079 PCT
4. POM Brian Reich	08831	907127	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Norman Grandstaff	Abuse: Officer Norman Grandstaff stopped § 87(2)(b)	§ 87(2)(b)
B.POM Norman Grandstaff	Force: Officer Norman Grandstaff used physical force against § 87(2)(b)	§ 87(2)(b)
C. Officers	Force: Officers used physical force against § 87(2)(b)	§ 87(2)(b)
D. An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)	§ 87(2)(b)
E.POM Thomas Stevens	Abuse: Officer Thomas Stevens stopped § 87(2)(b)	§ 87(2)(b)
F.POM Thomas Stevens	Force: Officer Thomas Stevens used physical force against § 87(2)(b)	§ 87(2)(b)

Synopsis

On June 25, 2003, officers from the 79th Precinct Anti-Crime unit dispersed a crowd that had been playing dice on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) and § 87(2)(b) were arrested at the scene § 87(2)(a) 160.50.

Each of the men disputed their arrests and claimed that officers used excessive force in the process. § 87(2)(b) also claimed that an officer used discourteous language. § 87(2)(g)

§ 87(2)(b)

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Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black male, 6'0" tall and 175 pounds. He § 87(2)(b) lives on § 87(2)(b) in Brooklyn. On the evening of June 25, 2003, § 87(2)(b) telephoned IAB and reported that officers had just assaulted and arrested her husband, § 87(2)(b) on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn (encl. 3a-b). § 87(2)(b) had not been a witness to the incident, but she had picked him up from the 79th Precinct stationhouse. She took him to § 87(2)(b) where he alleged that officers had "beat" him "all over" (encl. 6). He complained of pain to his stomach. Investigating officers from the IAB responded and interviewed § 87(2)(b) while he was at § 87(2)(b) for treatment (encl. 7a-b). The case was forwarded to the CCRB on the 8th of July (encl. 4a-b). § 87(2)(b) was initially uncooperative. He did not respond to repeated contact attempts and eventually missed his first appointment (encl. 28a-b). He eventually cooperated and the CCRB interviewed him on September 10, 2003 (encl. 8a-c). Below is a compilation of § 87(2)(b)'s statements. § 87(2)(b)

§ 87(2)(b)

On the evening of June 25, 2003, § 87(2)(b) was talking with a group of acquaintances on the corner of § 87(2)(b) and § 87(2)(b) near his residence. The weather was nice and many people were outside. § 87(2)(b) was talking with a group of men (unidentified acquaintances) when several marked and unmarked police vehicles stopped nearby. Officers got out and began putting people up against the wall. Observing this, § 87(2)(b) began to leave the area because he did not want to "be involved." After he crossed the street, a white male officer (Officer Norman Grandstaff) in plainclothes (in his 30's, about 6'4" tall and 210 pounds with sandy brown hair) yelled for him to "get on the wall." § 87(2)(b) questioned why and the officer replied, "Because I told you to." § 87(2)(b) refused and continued walking away. Officer Grandstaff grabbed him by the collar. § 87(2)(b) turned and told the officer to get off him. § 87(2)(b) denied that he reacted physically or resisted in any way. In his CCRB statement, he alleged that several officers immediately tackled him to the ground. In his IAB statement, § 87(2)(b) claimed that Officer Grandstaff immediately grabbed him and threw him to the ground. He did not mention other officers being involved. § 87(2)(b) was on his stomach and the officers were kneeling down around him. Officer Grandstaff was in front of him and used his knee to hold § 87(2)(b)'s face against the ground. The officers struck him in the stomach or midsection. He initially described these as punches, however conceded that he could not see how the officers struck him. He did not describe the officers. § 87(2)(b) verbally protested as the officers pulled his arms back. He denied resisting. An officer (unidentified) told him to "shut the fuck up." § 87(2)(b) did not mention this allegation in his statement to IAB. The officers put the handcuffs on, but they continued to strike him.

At some point, some of the officers ran to arrest another individual, who § 87(2)(b) later found out to be § 87(2)(b). § 87(2)(b) knew him from the neighborhood, but was not with him that night. § 87(2)(b) did not observe the arrest of § 87(2)(b). Officer Grandstaff returned to § 87(2)(b) who complained about being struck. He challenged Officer Grandstaff to do it in the holding cell. Officer Grandstaff responded by putting his arm underneath § 87(2)(b)'s arms and up through the opening between them. He pressed down on § 87(2)(b)'s neck and the leverage against § 87(2)(b)'s arms, caused pain to his neck and shoulders. Officer Grandstaff put him in the back of a marked patrol car and two uniformed officers drove § 87(2)(b) to the 79th Precinct stationhouse.

At the stationhouse, an officer gave § 87(2)(b) a summons and released him. He sustained abrasions and pain to his right ear, wrists, left shoulder, and left knee. After he was released, § 87(2)(b)'s wife drove him to the § 87(2)(b) to be treated. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Results of Investigation

Civilians

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black male, 6'4" tall and 188 pounds. He § 87(2)(b) lives on § 87(2)(b) in Brooklyn. § 87(2)(b) obtained medical treatment at § 87(2)(b) § 87(2)(b) after he was released from the stationhouse. He alleged that a NYPD officer had "beaten" him (encl. 9). IAB responded to the hospital and interviewed § 87(2)(b) (encl. 10a-b). The CCRB interviewed him on September 10, 2003 (encl. 11a-c). § 87(2)(g)

On June 25, 2003, § 87(2)(b) visited a girlfriend who lives in § 87(2)(b) in Brooklyn. At about 11 p.m., he began to walk to a convenience store on the corner of § 87(2)(b) and § 87(2)(b). There were several police cars near the corner. § 87(2)(b) continued walking, but noticed that officers had someone handcuffed and face down on the ground. He recognized the man as § 87(2)(b) an acquaintance from the neighborhood. One of the officers in plainclothes (allegedly Officer Grandstaff) had his knee on § 87(2)(b)'s face. There were several officers "tussling" with § 87(2)(b) who was complaining that he was already handcuffed. The plainclothes officers were aggressive with him. Officer Grandstaff punched § 87(2)(b) in the face twice. Other plainclothes officers were telling people to clear the corner. § 87(2)(b) continued walking towards the store. Before he got there, an officer (later identified as Officer Thomas Stevens) came over and told him to get off the corner. § 87(2)(b) contended that he continued to the store, but Officer Stevens grabbed him by the shirt and threw him to the ground. In his IAB statement, he claimed that Officer Stevens "stomped" on his head twice. Other officers then came over and punched him about the body. He could not describe these officers. § 87(2)(b) did not mention either of these allegations in his CCRB statement. § 87(2)(b) denied that he did anything to warrant the use of force. Officer Stevens instructed § 87(2)(b) to put his hands behind his back. He complied, but Officer Stevens pulled his arms behind his back with considerable force. § 87(2)(b) denied resisting. The officers put § 87(2)(b) into a van and other officers took him to the 79th Precinct stationhouse. He was eventually released with a summons § 87(2)(a) 160.50. § 87(2)(b) went to § 87(2)(b) for medical treatment. His shoulder was "out of place," but was not broken. He had abrasions to his shoulder from being on the ground. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Witness

§ 87(2)(b) provided the name and phone number of a possible witness to the incident. Several phone calls were made to § 87(2)(b)'s residence. No one was reached. A corresponding address was located through Metrosearch records (encl. 29). Contact letters were sent to the address. § 87(2)(b) did not respond (encl. 31a-g).

NYPD Officers

Officer Norman Grandstaff

Officer Norman Grandstaff is a § 87(2)(b) year old white male, 6'4" tall and 200 pounds. He had been a NYPD officer for five years. The CCRB interviewed him on March 15, 2004 (encl. 12a-b). Since the date of the incident, he has been promoted to the rank of sergeant. On June 25, 2003, Officer Grandstaff was assigned to the 79th Precinct Anti-Crime unit. He did not recall which officers he worked with that night and did not have his Memo-Book (As noted below, it is likely that Sgt. Lyons was his partner). They were in an unmarked Chevrolet Impala. At 11:00 p.m., Officer Grandstaff observed about ten people gambling (dice) and drinking on the corner of § 87(2)(b) and § 87(2)(b). Since dice games have the potential to escalate into violence, the officers decided to break up the game and clear the corner. Officer Grandstaff and the other Anti-Crime officers stopped. Some of the people fled immediately. A few others refused to leave. Officer Grandstaff did not recall officers instructing people to line up against the wall. § 87(2)(b) was one of the individuals who refused to leave. He raised his hand at Officer Grandstaff in a threatening manner. § 87(2)(b) was close enough to strike Officer Grandstaff, but did not do so. Officer Grandstaff immediately wrestled him to the ground. He did not recall if other officers assisted him. He did not issue any verbal commands before taking him to the ground. Officer Grandstaff explained that there was no time for commands since § 87(2)(b)'s arm was raised at him in a threatening manner. Officer Grandstaff did not allege that § 87(2)(b) attempted to strike him. He had not touched § 87(2)(b) prior to wrestling him to the ground. He denied striking § 87(2)(b). He did not observe any other officers strike him either. Once Officer Grandstaff had § 87(2)(b) on the ground, he was able to handcuff easily. He did not recall using his knee to hold § 87(2)(b)'s face on the ground.

Officer Grandstaff recalled that another male was arrested at the scene. However, he did not assist with that arrest and did not leave § 87(2)(b) who was now in his custody. He did not recall struggling with § 87(2)(b) on the way to the car. He did not purposely use his arm to force § 87(2)(b)'s head and neck down while forcing his arms up. Officer Grandstaff did not recall any problems or threats from § 87(2)(b) at the precinct. § 87(2)(b) did not have any visible injuries and did not complain of any injuries. Officer Grandstaff issued him summonses § 87(2)(a) 160.50.

Officer Thomas Stevens and Officer Michael Knott

Officer Thomas Stevens is a § 87(2)(b) year old white male, 6'1" tall and 185 pounds. He has been a NYPD officer for 12 years. The CCRB interviewed him on February 4, 2004 (encl. 14a-b). Officer Michael Knott is a § 87(2)(b) year old white male, 6'1" tall and 210 pounds. He has been a NYPD officer for twelve years. The CCRB interviewed him on March 16, 2004 (encl. 15a-b). On June 25, 2004, Officer Stevens and Officer Knott were partnered in an 79th Precinct Anti-Crime unit. They were in plainclothes and driving an unmarked vehicle. Their supervisor, Sgt. Lyons, was not in the same car. Additional Anti-Crime officers, including Sgt. Grandstaff, were in another car. At about 11:00 p.m., they observed a large crowd assembled on the corner of § 87(2)(b) and § 87(2)(b). The men in the group were playing dice and drinking. This area is part of the regular patrol area for the Anti-Crime officers. Officer Grandstaff and his partner (unidentified) were in a nearby vehicle. The team frequently patrols together, using multiple vehicles. The supervisor, Sgt. Lyons, wanted the crowd dispersed. The officers stopped to disperse the crowd. They approached the men on the corner and instructed them to break up the game and clear the scene. Everyone complied, except for two males who refused to leave the area. Officer Stevens recalled an officer struggling with § 87(2)(b). Officer Stevens did not recall who the officer was. Officer Stevens did not assist in the arrest of § 87(2)(b). He did not see an officer strike or kick him. Officer Knott did not recall observing the arrest of § 87(2)(b).

Officer Stevens approached § 87(2)(b) and instructed him several times to leave the area. He repeatedly refused to leave. Officer Knott was nearby when this occurred. Neither of the officers recalled § 87(2)(b) claiming that he was walking to the store. Officer Stevens informed him that he was under arrest. He grabbed § 87(2)(b)'s arm in order to handcuff him. Officer Stevens recalled that another officer (unidentified) came over to assist him. Officer Stevens recalled that there was a struggle, but he could not recall whether § 87(2)(b) was taken to the ground in order to put the handcuffs on him. Officer Stevens

could not recall any further details of the physical struggle to arrest § 87(2)(b). He did not recall that significant force was used to arrest him. Officer Knott did not recall whether any force was used to arrest § 87(2)(b). He did not recall officers forcing him to the ground. He did not recall assisting in the arrest. After the arrests, uniformed officers arrived at the scene. The two men were taken to the 79th Precinct stationhouse. Warrant checks were conducted and they were released with § 87(2)(a) 160.50 summonses.

Sergeant Joseph Lyons

Sergeant Joseph Lyons is a § 87(2)(b) year old white male, 5'11" tall and 180 pounds. He has been a NYPD officer for ten years. The CCRB interviewed him on February 4, 2004 (encl. 17a-b). On June 25, 2003, Sgt. Lyons was assigned as an Anti-Crime supervisor in the 79th Precinct. He recalled that Officer Reich was his partner for the day (It was determined later that Officer Reich was not present for the incident – his Memo-Book was obtained to confirm this (encl. 18a-b). It is likely that Officer Grandstaff was his partner on that day). Sgt. Lyons was in a gray Chevrolet Impala (RMP § 87(2)(b)). At 11:00 p.m., Sgt. Lyons observed a group of males drinking and playing dice near a bodega on the corner of § 87(2)(b) and § 87(2)(b). Officers in their command had been instructed to look out for dice games, which had led to shootings in the preceding year. The commanding officers had instructed them to break up dice games and issue summonses to those involved. When the officers pulled up, some of the males ran into a building next to the bodega, some ran into the bodega, and others ran up § 87(2)(b) towards § 87(2)(b). Additional Anti-Crime officers in another car had also stopped at the scene, a couple of car lengths ahead of Sgt. Lyons. The two cars had been driving near one another so that, if something happened, there would be four rather than two officers available to handle the situation. All of the officers got out and showed their badges. They told the individuals that had not left to leave the area. Two males pointedly refused to leave. One of them told the officers, "Fuck you, I'm not fucking going anywhere, I'm not fucking doing anything." Officer Grandstaff stopped one of the males and Officer Stevens stopped the other. One of the males (likely § 87(2)(b)) took a swing at an officer (Sgt. Lyons believed this officer to be Officer Stevens, however it was Officer Grandstaff). Officer Grandstaff took him to the ground. Sgt. Lyons was about fifteen feet behind them, making sure other civilians had left the location. Sgt. Lyons ran over to assist Officer Grandstaff. § 87(2)(b) was still resisting. Neither he nor Officer Grandstaff struck § 87(2)(b). Once they got the handcuffs on him, they patted him down for weapons, and put him in a marked car for transport to the stationhouse.

Sgt. Lyons did not see officers arrest the second male, § 87(2)(b). He was unsure which officers did so. He did not recall that either he or Officer Grandstaff ran over assist them. He did not observe an officer take § 87(2)(b) to the ground. There were still several people outside and watching what was happening. Officers apprehended the two men for refusing a lawful order to clear the scene. Sgt. Lyons recalled that they were charged § 87(2)(a) 160.50. The officers processed the arrest at the stationhouse because it was safer than it would have been to try and write summons at the scene.

Medical Records

§ 87(2)(b)'s medical records were obtained from § 87(2)(b) (encl. 21a-g). He received medical treatment § 87(2)(b) § 87(2)(b). On the Triage Form, it is noted that § 87(2)(b) claimed that several officers "beat" him "all over" (encl. 21c). § 87(2)(b) described the pain as an eight on a scale of ten. He also claimed to have vomited three times. The examining physician noted that § 87(2)(b) did not want to provide a reason as to why he had been beaten (encl. 21d). He was diagnosed with having "blunt trauma" to his abdomen (encl. 21e). The only other injury noted is an abrasion below his right knee. A x-ray examination was conducted and there was no evidence of further injury (encl. 21g).

§ 87(2)(b)'s medical records were also obtained from § 87(2)(b) (encl. 21h-k). He also obtained treatment on the morning after the incident. It is noted on the Triage Form that § 87(2)(b) complained of pain to his left shoulder, left hand, and left knee (encl. 21h). He also had an abrasion to his left hand and swelling and an abrasion to his left eyebrow. § 87(2)(b) rated the level of pain as a seven on a ten-scale. The examining physician noted that § 87(2)(b) claimed to have been injured when the police handcuffed him (encl. 21i). He had asserted that an officer stepped on his shoulder

and his knee. A x-ray examination determined that § 87(2)(b) did not have a fracture or dislocation to his shoulder (encl. 21k). The physician's diagnosis was abrasions to § 87(2)(b)'s shoulder and knee (encl. 21j).

NYPD Documents

Officer Stevens issued a summons to § 87(2)(b) § 87(2)(a) 160.50. Officer Grandstaff issued a summons to § 87(2)(b) for the same offenses (encl. 23). The Command Log entries for their arrests are at 10:50 p.m. (encl. 24a-b). Their conditions were both marked as "apparently normal."

Criminal Court Documents

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Photographic Evidence

IAB took Polaroid photographs of § 87(2)(b) and § 87(2)(b). The photographs of § 87(2)(b)'s face and lower arms do not show any injuries (encl. 27a). The photograph of his left shoulder shows possible bruising and there is a scrape to his left knee (encl. 27b). The photograph of § 87(2)(b)'s left shoulder shows that he had considerable bruising on front portion of it (encl. 27c). There also appears to be a minor scrape to his right knee.

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant and Victim's CCRB Histories

§ 87(2)(b) the non-victim complainant, has filed five CCRB complaints since 2000 (encl. 5a). § 87(2)(b) was an alleged victim in two of them (including this complaint) (encl. 5b).

Subject Officers' CCRB Histories

Officer Grandstaff does not have any previously substantiated complaints (encl. 2a). In case #200307469, Officer Stevens was substantiated for not providing his name and shield number. The final determination of the case is still pending (encl. 2b-c).

Conclusions and Recommendations

Facts and Issues

Officers from the 79th Precinct Anti-Crime unit stopped at the corner of § 87(2)(b) and § 87(2)(b) to break up a dice game. § 87(2)(g) The officers attempted to disperse the crowd. They asserted that everyone complied except § 87(2)(b) and § 87(2)(b). Each maintained their innocence. § 87(2)(b) portrayed Officer Grandstaff as grabbing him without warning and throwing him to the ground. Officer Grandstaff stated that § 87(2)(b) made a threatening movement by raising his arm towards him. Sgt. Lyons described this movement as a swing. § 87(2)(b) and the other officers did not witness the interaction. § 87(2)(b) alleged that an officer or officers struck him several times in the stomach and about the body. § 87(2)(b) claimed to have observed an officer punch § 87(2)(b) in the face. § 87(2)(b) himself did not allege this. He denied resisting. The officers denied that any of the officers struck him. Sgt. Grandstaff did not recall any significant force being used after § 87(2)(b) was on the ground. He also contended that an officer told him to “shut the fuck up.”

§ 87(2)(b) asserted that he was walking to the store when Officer Stevens approached him and told him to get off the corner. § 87(2)(b) claimed that he continued walking, but the officer grabbed him and threw him to the ground. He alleged in his IAB statement that Officer Stevens “stomped” on his head and officers punched him about the body. Officer Stevens did not recall what specific force was used to arrest § 87(2)(b). He could not recall whether he forced § 87(2)(b) to the ground. Officer Knott, his partner, could not recall anything about the arrest. § 87(2)(b) and § 87(2)(b) each had minor injuries.

Officer Identification

Officer Grandstaff admitted that he stopped and ultimately used force to arrest § 87(2)(b). § 87(2)(g) § 87(2)(b) claimed that additional officers struck him while he was on the ground. However, he could not describe them. Officer Grandstaff did not recall any officers assisting him. § 87(2)(g) § 87(2)(b) could not describe the officer who allegedly told him to “shut the fuck up.” § 87(2)(g) Officer Stevens admitted that he stopped and arrested § 87(2)(b). § 87(2)(g)

Credibility

§ 87(2)(g) § 87(2)(b) claimed that officers struck him in the stomach and torso several times. § 87(2)(g) He claimed to IAB that Officer Stevens had “stomped” on his head and other officers punched him about the body. However, he did not make these serious claims to the CCRB. § 87(2)(b)

§ 87(2)(g) He admitted immediately taking § 87(2)(b) to the ground after § 87(2)(b) made a threatening movement. Sgt. Lyons recalled the arrest of § 87(2)(b) and his statement corroborated Officer Grandstaff. Conversely, Officer Stevens could not recall many of the details of the incident. § 87(2)(g) Officer Knott also claimed to not be able to recall what force was used during the incident.

Allegations

- A) Abuse of Authority: Officer Norman Grandstaff stopped § 87(2)(b)
- B) Force: Officer Norman Grandstaff used physical force against § 87(2)(b)
- C) Force: Officers used physical force against § 87(2)(b)
- D) Discourtesy: An officer spoke obscenely and/or rudely § 87(2)(b)

§ 87(2)(g)

[REDACTED]

- E) Abuse of Authority: Officer Thomas Stevens stopped § 87(2)(b)
- F) Force: Officer Thomas Stevens used physical force against § 87(2)(b)

[REDACTED] claimed that he was merely walking to the store when an officer accosted him. § 87(2)(g)

[REDACTED]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: